

Stereo. H C J D A 38.
Judgment Sheet
IN THE LAHORE HIGH COURT
BAHAWALPUR BENCH, BAHAWALPUR
JUDICIAL DEPARTMENT

Criminal Revision No. 25 of 2012

Muhammad Younus vs The State etc.

JUDGMENT

Date of hearing.	<u>25.03.2019</u>
Petitioner by:	Mr. Shafi Muhammad Tariq, Advocate alongwith petitioner in person (on bail).
State by:	Malik Mudassir Ali, Deputy Prosecutor-General.
Complainant:	Nemo.

Farooq Haider, J:- Petitioner Muhammad Younus was tried in case arising out of F.I.R. No.268/2008 dated 08.08.2008 registered under Section 489-F, PPC at Police Station Faqirwali, District Bahawalnagar and *vide* judgment dated 29.11.2011, the learned trial court/Judl. Magistrate Ist Class, Haroonabad convicted and sentenced him as under:-

Under Section 489-F PPC to undergo Imprisonment for a period of Three years alongwith fine of Rs.15,000/-; in case of default in payment of fine, he shall further undergo four month's Simple Imprisonment.

Benefit of Section 382-B Cr.P.C was also extended to the petitioner.

Against the aforementioned conviction and sentence, petitioner filed Criminal Appeal but that was dismissed by the learned Additional Sessions Judge, Haroonabad/Appellate Court *vide* impugned judgment dated 26.01.2012 and resultantly conviction recorded and sentence awarded by learned trial Court were upheld.

2. Feeling aggrieved, petitioner has filed the instant Crl. Revision before this Court in which notice was issued to the complainant/respondent No.2; during pendency of instant criminal revision, sentence of the petitioner was suspended by this Court *vide* order dated 23.05.2012.

3. After hearing learned counsel for the petitioner, learned Law Officer and going through the record with their able assistance, it has been observed that the impugned-cheque was pertaining to the obligation, which arose *vide* decision of *Panchayat* and said decision has been brought on record by the accused as Ex. DB; perusal of the same reveals that on the one hand petitioner/accused was burdened with the liability with respect to this cheque and its encashment on a specific date i.e. 15.11.2017, whereas in the same decision of *Panchayat* at its Paragraph No. 6, it has been clearly mentioned that complainant shall also handover transfer letter of motorbike to the accused/petitioner till the same date i.e. 15.11.2007, which scenario reflects that there were two obligations; one was upon the accused/petitioner while other was upon the complainant, these both arose at one and the same time, from one and the same document and ought to be fulfilled on or till one and the same date i.e. 15.11.2007; these both obligations were not independent of each other and when complainant has not himself fulfilled said obligation i.e. he has not given transfer letter of the said motorbike to the accused, then, non-fulfilment of financial obligation imposed upon the accused/petitioner for making arrangements of sufficient funds for payment of the cheque, was also not imposing any criminal liability upon him for the purpose of invoking provision of Section 489-F PPC; so much so, accused/petitioner even in his statement under Section 342 Cr.P.C. while answering to question No. 5 has categorically stated that he is ready to pay the said amount if transfer letter of the motorbike is given to him. In this regard Question No. 5 along with its Answer is being reproduced for ready reference: -

“Q. No. 5. Why this case has been registered against you?

Ans. The complainant in connivance with the local police has lodged this false and frivolous case against me. In fact, I and complainant jointly purchased Mazda vehicle No. 1139/LZR, which remained in the possession of complainant. I paid all instalments to real owner. Secondly, I gave Rs.50,000/- to complainant to purchase Motorcycle Yamaha, I wanted to give it to my daughter on her marriage. Further I gave Rs.1500/- to the complainant for documents/registration of motorcycle. Complainant purchased motorcycle from Salman Traders Haroonabad on instalments, while he got recovered whole amount from me. On above said issue, a dispute arose between us. A punchaiyat was organized. Both of us agreed upon arbitration decision and arbitration deed was drafted, according to which amount of Rs.237,000/- was declared against me, out of which I paid Rs.50,500/- at spot to complainant and I gave cheque for payment of remaining amount to complainant. On the other hand, liability was fixed upon complainant by arbitrators that he will give documents of motorcycle to me, after giving whole money to Salman Traders Haroonabad. Now I am also ready to pay money mentioned in cheque, if complainant return me amount of motorcycle or give me documents of motorcycle. I have instituted suit for recovery of amount Rs.60,000/- regarding the motorcycle, which is still pending. I produced original arbitration deed as Exh.DB and certified copy of suit for recovery as Exh.D.C I have not issued cheque to him dishonestly or fraudulently.”

Furthermore, when Investigating Officer was cross-examined in this regard, he admitted that fact of motorbike was mentioned in the said decision of *Panchayat*, however, he stated that he has not further investigated the said fact, which itself speaks about *mala fide* intention on his part. Nutshell is that in peculiar facts and circumstances mentioned above, no criminal liability with respect to Section 489-F PPC, can be fixed upon accused/petitioner.

After perusal of record it has also been noticed that neither impugned-cheque nor memo of slip was got exhibited/produced before the Court in original, so much so, their copies were even not got compared before trial court by the prosecution with original in order to give them any name of exhibited documents for their admissibility in evidence; furthermore, if on the one hand said documents i.e. cheque and memo of slips have not been proved according to law, on the other hand it is also very alarming situation that both the said documents i.e. cheque and memo of dishonouring the same, have not been put to the accused/petitioner under Section 342 Cr.P.C., hence, same cannot be used against him otherwise it would amount to “*audi alteram partem*” and guidance in this regard has been sought from the dictum laid down in the case of “Ameer Zeb versus The State” reported in (PLD 2012 Supreme Court 380), relevant portion available at Page No. 398 in Paragraph No. 6, is hereby being reproduced for ready reference: -

“It is trite that a piece of evidence not put to the accused person at the time of recording of his statement under section 342, Cr.P.C. cannot be used against him by the prosecution.”

(emphasis added)

In this regard case of “Muhammad Saddique versus The State” reported in (2018 S C M R 71), “Nadeem *alias* Kala versus The State and others reported in (2018 S C M R 153) and “Imtiaz *alias* Taj versus The State and others” reported in (2018 S C M R 344) can also be referred advantageously.

4. In view of what has been discussed above, prosecution has been failed to prove its case against the petitioner and both the learned courts below have not taken into consideration aforementioned important aspect of the case. Consequently, Crl. Revision No. 25 of 2012, is **accepted**, conviction and sentence (mentioned above) awarded to the petitioner Muhammad Younas by the learned trial court/Judl. Magistrate Ist Class, Haroonabad *vide*

judgment dated 29.11.2011 and upheld by learned Additional Sessions Judge, Haroonabad/Appellate Court *vide* impugned judgment dated 26.01.2012, are set-aside. Petitioner is acquitted of the charge; he is on bail after suspension of his sentence, therefore, his bail bonds are cancelled and surety is discharged from his liability.

(Farooq Haider)
Judge

Kashif

“Approved for reporting.”

(Farooq Haider)
Judge